Of Counsel:
ROECA LURIA SHIN LLP
A Limited Liability Law Partnership

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Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] **[PROPOSED]** ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]; EXHIBITS "A" AND "B"; CERTIFICATE OF SERVICE
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	HEARING: Date: October 5, 2026 Time: 8:30 a.m. Judge: Honorable Timothy E. Ho

I do hereby certify that the foregoing is a full, true and correct copy of the official court record of the Courts of the State of Hawai`i.
Dated at: Honolulu, Hawai`i 23-OCT-2026, /s/ Lori Ann Okita, Clerk of the First Judicial Circuit, State of Hawai`i

NIKODEM PIKOR,

Third-Party Plaintiff,

vs.

THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation,

Third-Party Defendant.

[PROPOSED] ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]

Pursuant to District Court Rules of Civil Procedure, Rule 23, please find attached the Proposed Order Denying Counterclaim Defendant/Counterclaim Plaintiff NIKODEM PIKOR'S Motion to Extend Time to File Appeal filed August 24, 2026 [Dkt. 442].

Attached hereto as Exhibit "A" is a true and correct copy of the October 13, 2026 Rule 23 letter sending the original proposed form of order to Mr. Pikor; and attached hereto as Exhibit "B" is the email string sending the proposed order to counsel and Mr. Pikor, with Mr. Pikor's response, and the subsequent submission to Mr. Pikor with its attachment of the redline version of the proposed form or order which incorporated Mr. Pikor's suggested edits to the proposed form of order, dated between October 13, 2026 and October 18, 2026. The submitted form of order herewith is the edited version as shown with the redlines in Exhibit "B", but in a form without the visible redline edits.

DATED: Honolulu, Hawai‘i, October 23, 2026.

/s/ James R. Ferguson
JAMES R. FERGUSON
JODIE D. ROECA
Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS

Of Counsel:
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A Limited Liability Law Partnership

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Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442] HEARING: Date: October 5, 2026 Time: 8:30 a.m. Judge: Honorable Timothy E. Ho
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	

NIKODEM PIKOR,	)
	)
Third-Party Plaintiff,	)
vs.	)
	)
THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation,	)
	)
Third-Party Defendant.	)
	)
	)

ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]

On August 24, 2026 [Dkt. 442], Defendant/Counterclaim Plaintiff NIKODEM PIKOR filed his Motion to Extend Time to File Appeal ("**Motion**"); on September 9, 2026, the Association of Apartment Owners of Marine Surf Waikiki, Inc. ("**the AOAO**") as Counterclaim Defendant opposed the Motion [Dkt. 453]; and on September 9, 2026, the AOAO as Plaintiff opposed the Motion, which came on for hearing via Zoom on October 5, 2026, at 8:30 a.m. before the Honorable Timothy E. Ho; James R. Ferguson, Esq. appeared on behalf of Counterclaim Defendant AOAO, Yun W. Kim, Esq. appeared on behalf of Plaintiff AOAO; and Amanda L. Dutcher, Esq. appeared and was excused and discharged as counsel by the Court from appearing on behalf of Defendant/Counterclaim Plaintiff Nikodem Pikor ("**Pikor**"), who was present and argued *pro se* at the hearing; and

The Court having heard the arguments of counsel and Pikor, having reviewed and considered the memoranda and declarations in support and in opposition, and being fully advised in the premises, finds that the Motion to Extend Time to File Appeal was untimely; and therefore,

IT IS HEREBY ORDERED, ADJUDGED AND DECREED that Counterclaim Defendant/Counterclaim Plaintiff NIKODEM PIKOR'S Motion to Extend Time to File Appeal filed August 24, 2026 [Dkt. 442] is hereby DENIED.

DATED: Honolulu, Hawaii, _____.

_____
JUDGE OF THE ABOVE-ENTITLED COURT

APPROVED AS TO FORM:

_____	/s/_____
Defendant/Counterclaim Plaintiff NIKODEM PIKOR	TERRANCE M. REVERE AMANDA L. DUTCHER Former/Withdrawn Attorneys for Defendant/Counterclaim Plaintiff NIKODEM PIKOR
*/s/ James R. Ferguson*_____	*/s/ Yun W. Kim*_____
JAMES R. FERGUSON JODIE D. ROECA Attorneys for Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS	GLENN S. HORIO YUN W. KIM Attorneys for Plaintiff Association of Apartment Owners of Marine Surf Waikiki, Inc., by its Board of Directors ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS

ORDER DENYING DEFENDANT/COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]*; AOAO Marine Surf Waikiki, Inc. v. Nikodem Pikor, et al*., Civ. No. 1RC191003776, Honolulu Dist. Court of the First Circuit, State of HI

EXHIBIT “A”

ROECA LURIA SHIN LLP

A Limited Liability Law Partnership

JAMES R. FERGUSON
JODIE D. ROECA

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jferguson@rlhlaw.com
jroeca@rlhlaw.com

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Telephone:
(808) 538-7500

Facsimile:
(808) 521-9648

RLS File No.
0454.230

October 13, 2026

Sent Via Mail, First Class Postage prepaid to

Nikodem Pikor
2825 S. King St. Suite #2701
Honolulu HI, 96826

and sent via Email to:
NIKODEM PIKOR
niko@mojehawaje.pl
AMANDA L. DUTCHER, ESQ.
amanda@revereandassociates.com
GLENN S. HORIO, ESQ.
gh@dkpvlaw.com
YUN W. KIM, ESQ.
yk@dkpvlaw.com;

Re: ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors v. NIKODEM PIKOR
1RC191003776, District Court of the First Circuit,
Honolulu District Court, State of Hawaii

Dear Mr. Pikor:

Enclosed is are two proposed orders: 1) the [PROPOSED] ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442] and 2) the PROPOSED ORDER DENYING DEFENDANT/COUNTERCLAIM PLAINTIFF NIKODEM PIKOR'S MOTION FOR RECONSIDERATION OF ORDER GRANTING IN PART AND DENYING IN PART MOTION FOR ATTORNEYS' FEES AND COSTS [DKT. 423] FILED AUGUST 19, 2026 [DKT. 431] ("**proposed Orders**").

EXHIBIT "A"

If you approve of the form of the proposed Orders, please sign at your signature line on the respective proposed Orders and return to our offices via mail or email. If we do not hear from you or if you object to the form of the proposed Orders, we will submit the proposed Orders to the court pursuant to the Hawai‘i Rules of Circuit Court Rule 23, and then you will have five (5) days in which to deliver to the court and serve upon us, a statement of your objection and the reason therefor, and provide to the court a form of your proposed Orders.

Very truly yours,

ROECA LURIA HIRAOKA LLP
A Limited Liability Law Partnership

/s/ *Jodie D. Roeca*

Jodie D. Roeca

Enclosures

EXHIBIT “B”

From: Jodie D. Roeca
Sent: Sunday, October 18, 2026 4:23 PM
To: Nikodem Pikor
Cc: gh@dkpvlaw.com; yk@dkpvlaw.com; James R. Ferguson; Deborah A. Taylor; amanda@revereandassociates.com
Subject: Edited forms of order to submit Monday RE: Please review draft orders for form pursuant to Hawai'i Circuit Court Rule 23: Marine Surf v. Pikor
Attachments: Prop.Order.Denying.M.Recon.atty.fees. 2026-10-15.redline..pdf; Prop.Order.Denying.M.Recon.atty.fees. 2026-10-15.clean..pdf; Prop.Order Denying Pikor's M-Extend Time File Appeal.2026-10-15.redline..pdf; Prop.Order Denying Pikor's M-Extend Time File Appeal.2026-10-15.clean..pdf

Dear Mr. Pikor, Ms. Dutcher, Mr. Kim, and Mr. Horio, I hope to file these forms of order in the early afternoon on Monday, October 19, 2026.

I have edited the draft orders [1) denying the motion for reconsideration, and 2) denying the motion to extend time to appeal] to incorporate Mr. Pikor's suggestions. I have attached each in both redline (so you can easily see where I made edits), and in clean form.

If you do not give me your approval as to form, I will not add your signatures to the form of order (and for Mr. Kim and Mr. Horio, I would remove your signatures from the new forms of order).

For the counsel, please let me know if I can add your signatures to the forms of order.

For Mr. Pikor, if you approve of the form, please print and sign the form of order, and email a PDF of the signed form back to me.

Thanks for your consideration of these forms of order. Sincerely, Jodie

Jodie D. Roeca, Esq.
Roeca Luria Shin LLP
A Limited Liability Law Partnership

American Savings Bank Tower
1001 Bishop Street, Suite 2250
Honolulu, HI 96813

Telephone Main: 808.538.7500
Telephone Direct: 808.203.6308
Fax: 808.521.9648
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Web: www.rlhlaw.com

The information contained in this transmission may be subject to the attorney-client privilege or the work product doctrine. It is intended only for the use of the recipient named above and is covered by the Electronic Communications Privacy Act, 18 U.S.C. §§ 2510-2521. If you are not the person named as a recipient, or the person responsible for delivering this message to the named recipient, please notify us immediately by return email and permanently delete this transmission from your mail server Thank you

EXHIBIT "B"

From: Nikodem Pikor <niko@mojehawaje.pl>
Sent: Thursday, October 15, 2026 4:13 PM
To: Deborah A. Taylor <dtaylor@rlhlaw.com>; amanda@revereandassociates.com
Cc: Jodie D. Roeca <jroeca@rlhlaw.com>; gh@dkpvlaw.com; yk@dkpvlaw.com; James R. Ferguson <jferguson@rlhlaw.com>
Subject: Re: Please review draft orders for form pursuant to Hawai‘i Circuit Court Rule 23: Marine Surf v. Pikor

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Ms. Taylor,

I received the October 13, 2026 transmittal and the two proposed orders. I do not approve either proposed order as to form.

Please correct the following:

1. The proposed order concerning Dkt. 442 identifies me as “Counterclaim Defendant/Counterclaim Plaintiff.” The correct designation is Defendant/Counterclaim Plaintiff; the AOAO is the counterclaim defendant.
2. The October 5 appearance recital should state that Amanda L. Dutcher appeared, was excused and discharged as counsel, and that I proceeded self-represented, consistent with Dkts. 486 and 487.
3. The proposed order concerning Dkt. 431 should distinguish the September 24 procedural appearance from the September 28 decision on the written submissions, as reflected in Dkt. 480.
4. Please do not represent that former counsel approved either order on my behalf unless the final order identifies the person who actually supplied that approval. I have not approved the transmitted forms.

I will provide alternative proposed forms pursuant to Rule 23 of the Rules of the District Courts of the State of Hawai‘i. Please confirm that the current versions will not be submitted as approved by me.

This response concerns form only and does not waive any substantive, appellate, jurisdictional, or post-judgment position.

Mahalo,
Nikodem Pikor
Self-represented

On Wed, 14 Oct 2026 02:46:44 +0000, "Deborah A. Taylor" <dtaylor@rlhlaw.com> wrote:

> Attached is a letter dated October 13, 2026, which transmits two Proposed Orders for your approval. We have also mailed a hard copy of the letter and two Proposed Orders. Thank you. Deborah Ann Taylor Legal Assistant to Arthur F. Roeca, Esq. James R. Ferguson, Esq. Jodie D. Roeca, Esq. Roeca Luria Shin LLP A Limited Liability Law Partnership American Savings Bank Tower 1001 Bishop Street, Suite 2250 Honolulu, HI 96813 Main: (808) 538-

7500 ext. 317 Direct: (808) 203-6317 Fax: (808) 521-9648 Email: dtaylor@rlhlaw.com<mailto:rhiga@rlhlaw.com> Web: www.rlhlaw.com<http://www.rlhlaw.com/> The information contained in this transmission may be subject to the attorney-client privilege or the work product doctrine. It is intended only for the use of the recipient named above and is covered by the Electronic Communications Privacy Act, 18 U.S.C. §§ 2510-2521. If you are not the person named as a recipient, or the person responsible for delivering this message to the named recipient, please notify us immediately by return email and permanently delete this transmission from your mail server Thank you.

Of Counsel:
ROECA LURIA SHIN LLP
A Limited Liability Law Partnership

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Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] **[PROPOSED] ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]**
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	HEARING: Date: October 5, 2026 Time: 8:30 a.m. Judge: Honorable Timothy E. Ho

NIKODEM PIKOR,

Third-Party Plaintiff,

vs.

THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation,

Third-Party Defendant.

[PROPOSED] ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]

Of Counsel:
ROECA LURIA SHIN LLP
A Limited Liability Law Partnership

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Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] **ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]** HEARING: Date: October 5, 2026 Time: 8:30 a.m. Judge: Honorable Timothy E. Ho
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	

NIKODEM PIKOR, Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	)))))))))))

ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]

On August 24, 2026 [Dkt. 442], Defendant/Counterclaim Plaintiff NIKODEM PIKOR filed his Motion to Extend Time to File Appeal ("**Motion**"); on September 9, 2026, the Association of Apartment Owners of Marine Surf Waikiki, Inc. ("**the AOAO**") as Counterclaim Defendant opposed the Motion [Dkt. 453]; and on September 9, 2026, the AOAO as Plaintiff opposed the Motion, which came on for hearing via Zoom on October 5, 2026, at 8:30 a.m. before the Honorable Timothy E. Ho; James R. Ferguson, Esq. appeared on behalf of Counterclaim Defendant AOAO, Yun W. Kim, Esq. appeared on behalf of Plaintiff AOAO; and Amanda L. Dutcher, Esq. appeared and was excused and discharged as counsel by the Court from appearing on behalf of Defendant/Counterclaim Plaintiff ~~/ Third-Party Plaintiff~~ Nikodem Pikor ("**Pikor**"), who was present and argued *pro se* at the hearing; and

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The Court having heard the arguments of counsel and Pikor, having reviewed and considered the memoranda and declarations in support and in opposition, and being fully advised in the premises, finds that the Motion to Extend Time to File Appeal was untimely; and therefore,

IT IS HEREBY ORDERED, ADJUDGED AND DECREED that Counterclaim Defendant/Counterclaim Plaintiff NIKODEM PIKOR'S Motion to Extend Time to File Appeal filed August 24, 2026 [Dkt. 442] is hereby DENIED.

DATED: Honolulu, Hawaii, _____.

_____
JUDGE OF THE ABOVE-ENTITLED COURT

APPROVED AS TO FORM:

_____
Defendant/Counterclaim~~Third-Party~~ Plaintiff
NIKODEM PIKOR

/s/
TERRANCE M. REVERE, ESQ.
AMANDA L. DUTCHER, ESQ.
Former/Withdrawn Attorneys for
Defendant/Counterclaim~~Third-Party~~ Plaintiff
NIKODEM PIKOR

/s/ James R. Ferguson
JAMES R. FERGUSON
JODIE D. ROECA
Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS

/s/ Yun W. Kim
GLENN S. HORIO
YUN W. KIM
Attorneys for Plaintiff
Association of Apartment Owners of Marine Surf Waikiki, Inc., by its Board of Directors
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS

~~Association of Apartment Owners of Marine Surf Waikiki, Inc., et al. v. Nikodem Pikor, et al.; Civil No. 1RC191003776~~ ORDER DENYING DEFENDANT/COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]; *AOAO Marine Surf Waikiki, Inc. v. Nikodem Pikor, et al.*, Civ. No. 1RC191003776, Honolulu Dist. Court of the First Circuit, State of HI

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAI‘I

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 CERTIFICATE OF SERVICE
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	
NIKODEM PIKOR, Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing was duly served by depositing the same in the United States Mail, postage prepaid, hand-delivery, or electronically through JEFS to the following at their last known address:

	U.S. Mail	Hand Delivery	JEFS
GLENN S. HORIO, ESQ. Deeley King Pang & Van Etten 1003 Bishop Street, Suite 1550 Honolulu, HI 96813 Attorneys for Plaintiff ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS			X
NIKODEM PIKOR 2825 S. King St. Suite #2701 Honolulu HI, 96826 Defendant/ Counterclaim Plaintiff	X		X
TERRANCE M. REVERE, ESQ. AMANDA L. DUTCHER, ESQ. Revere & Associates Pali Palms Plaza 970 North Kalahea Street, Suite A3-1 Kailua, HI 96734 Former/Withdrawn Attorneys for Defendant/ Counterclaim Plaintiff NIKODEM PIKOR			X

DATED: Honolulu, Hawai‘i, October 23, 2026.

/s/ James R. Ferguson
JAMES R. FERGUSON
JODIE D. ROECA
Attorneys for Counterclaim Defendant
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS